

25SMCV05466 25SMCV05466

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Case Number: 25SMCV05466 Hearing Date: July 17, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

JIHAD SAMAT, an individual,

Plaintiff,

v.

MICHAEL BAHNA, et al.,

Defendants.

Case No.:

25SMCV05466

Hearing Date: 07/17/26

Trial Date:

None

[TENTATIVE] RULING RE:

DEMURRER WITH MOTION TO STRIKE

Background

In this assault action, Plaintiff Jihad Samat ("Plaintiff") alleges that Defendant Michael Bahna ("Bahna"), while on a roof of a building owned by Defendant Baxter Properties, LLC ("Baxter Properties"), intentionally and maliciously fired multiple rounds of projectiles from his air gun onto Plaintiff (a military veteran) and other individuals participating in a peaceful anti-Zionist protest. As a result of the incident, Plaintiff's post-traumatic stress disorder ("PTSD"), which was previously stabilized and controlled, was triggered, and Plaintiff suffered a severe relapse that caused him to suffer nightmares, hypervigilance, and avoidance behaviors to this day.

On October 21, 2025, Plaintiff filed this action against Bahna, Baxter Properties, and Does 1 to 50, inclusive, asserting causes of action for: (1) assault; (2) intentional infliction of emotional distress ("IIED"); (3) violation of the Tom Bane Civil Rights Act (the "Bane Act"); (4) violation of the Ralph Act; (5) negligence; and (6) premises liability.

On April 10, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against the defendants, asserting the following causes of action:

(1)

Assault (against Bahna and Does)

(2)

Battery (against Bahna and Does)

(3)

IIED (against Bahna and Does)

(4)

Violation of the Bane Act (against all defendants)

(5)

Violation of the Ralph Act (against all defendants)

(6)

Negligence (against all defendants)

(7)

Premises Liability (against Baxter Properties
and Does)

(8)

Negligent Supervision/Failure to Control
(against Baxter Properties and Does)

Bahna and Baxter Properties (collectively, “Defendants”) now
demur all claims in the FAC, and move to strike.

Defendants filed the demurrer and motion to strike on May 8,
2026.

On July 6, 2026, Plaintiff filed oppositions.

On July 10, 2026, Defendants filed one reply in support of
the demurrer and motion to strike.

Legal Standard

A. Demurrer

A

defendant may demur a complaint on the ground that “[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10(e).) The defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) The court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

B. Motion to Strike

The

court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Request

for Judicial Notice

Defendants

request for judicial notice of the original Complaint and FAC filed in this case is granted. (Request for Judicial Notice, filed May 8, 2026, p. 1:22-28; Evid. Code, § 452, subd. (d) [allowing a court to take judicial notice of court records]; Plaintiff’s Response to Request for Judicial Notice, filed July 6, 2026 [arguing that while Plaintiff does not oppose the request for judicial notice of his pleadings, he objects Defendants arguments in the demurrer regarding the pleadings].)

Meet and Confer

The Court finds that Defendants have satisfied the meet and confer requirement. (Demurrer, Declaration of David M. Murphy, ¶¶ 5,

6; Motion to Strike, Murphy Decl., ¶¶ 5, 6.)

Demurrer

Defendants make several arguments in their demurrer. The Court addresses them in the order they appear in the demurrer.

A.

Baxter's Demurrer Argument: Sham Pleading

Baxter argues that the FAC is a sham pleading because the original complaint alleged that Baxter owned the building located at 11766 Wilshire Boulevard, but the FAC now alleges that the defendant owns the building located at 11847 Wilshire Boulevard without explaining the reason for the change. Baxter contends the change is significant because ownership and control of the building form the foundation of every claim Plaintiff is bringing against it.

“Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment.” (State of California ex rel. Metz v. CCC Information Services, Inc. (2007) 149 Cal.App.4th 402, 412.)

However, “[t]he sham pleading doctrine is not “intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts.” [Citation.] Instead, it is intended to enable courts “to prevent an abuse of process.” [Citation.]’ [Citations.] Plaintiffs therefore may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings.” (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336, 344.)

Here, Plaintiff explains that he mistakenly confused the building that Baxter allegedly owned with the Consulate's address. (Demurrer Opp., p. 7:23-26.) Contrary to Defendants' arguments in the reply, that explanation is sufficient.

Therefore, Baxter's demurrer to the FAC on the ground that it is a sham pleading is overruled.

B.

Baxter's Demurrer Argument: Fourth Cause of Action for Violation of the Bane Act

"The Bane Act and related statutes "are California's response to ... alarming increase in hate crimes." ... Civil Code section 52.1 provides that a person may bring a cause of action "in his or her own name and on his or her own behalf" against anyone who "interferes by threats, intimidation or coercion, with the exercise or enjoyment" of any constitutional or statutory right.' [Citation.]" (Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268, 1290 (Gabrielle);

"[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff's membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes.' [Citation.]" (Gabrielle, supra, 10 Cal.App.5th at p. 1290.)

Baxter argues, and the Court agrees, that the FAC fails to plead facts sufficient to constitute violation of Bane against that defendant. "Plaintiff pleads only ownership of the Property and conclusory agency, alter-ego and ratification labels. ([Defendants' Request for Judicial Notice, Ex. 1 – a copy of the FAC] ¶¶ 23-25, 53.) These are legal conclusions, not ultimate facts. A Bane Act claim requires personal participation in the statutory violation; it cannot be based on after-the-fact ratification or bare agency conclusions." (Demurrer, p. 10:1-5.)

In his opposition, Plaintiff does not address Baxter's Bane Act arguments.

Therefore, Baxter's demurrer to the fourth cause of action for violation of the Bane Act on the ground that it fails to state a cause of action is SUSTAINED with leave to amend.

C.

Baxter's
Demurrer Argument: Fifth Cause of Action for Violation of the Ralph Act

“Under the Ralph Act, a plaintiff must establish [1] the defendant threatened or committed violent acts against the plaintiff or their property, and [2] a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right.” (Gabrielle, supra, 10 Cal.App.5th at p. 1291.)

The Court also agrees with Baxter that the FAC fails to allege facts sufficient to constitute a violation of the Ralph Act claim against the defendant. As the defendant argues, “Plaintiff does not plead facts showing that Baxter committed violence or threats of violence, or that any alleged conduct attributable to Baxter was motivated by a protected characteristic.” (Demurrer, p. 10:11-13.)

Plaintiff’s opposition does not address Baxter’s Ralph Act arguments.

Therefore, Baxter’s demurrer to the fifth cause of action for violation of the Ralph Act on the ground that it fails to state a cause of action is SUSTAINED with leave to amend.

D.

Baxter’s

Demurrer Argument: Sixth Cause of Action for Negligence and Seventh Cause of Action for Premises Liability

Baxter argues that the negligence claim fails to state a claim against the landowner for the following reasons. First, California courts hold that property owners generally do not owe a duty for injuries occurring on adjacent public ways absent special circumstances not pleaded here. Second, imposing a duty to prevent intentional violent acts requires a high degree of foreseeability, which is lacking here because Plaintiff does not allege prior similar incidents involving rooftop attacks or comparable conduct. Third, there was a superseding intentional criminal act as well as speculative causation (i.e., Plaintiff merely speculates regarding the measures (e.g., locks or alarms) that would have prevented the act).

As for the premises liability claim, Baxter argues that the claim fails for the same reasons the negligence claim fails.

“The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.)

“While negligence is ordinarily a question of fact, the existence of a duty is generally a question of law that may be addressed by demurrer.” (Paul v. Patton (2015) 235 Cal.App.4th 1088, 1095.)

“In determining a duty’s existence and scope, our precedents call for consideration of several factors: “[1] [T]he foreseeability of harm to the plaintiff, [2] the degree of certainty that the plaintiff suffered injury, [3] the closeness of the connection between the defendant’s conduct and the injury suffered, [4] the moral blame attached to the defendant’s conduct, [5] the policy of preventing future harm, [6] the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and [7] the availability, cost, and prevalence of insurance for the risk involved.” [Citations.]” Castaneda v. Olsner (2007) 41 Cal.4th 1205, 1213 (Castaneda) [referring to the factors in Rowland v. Christian (1968) 69 Cal.2d 108, 113 (the “Rowland factors”)].)

But when the issue is determining “the scope of a landlord’s duty to provide protection from foreseeable third party crime, ... [the California Supreme Court has] recognized that the scope of the duty is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed. [Citation.] “[I]n cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. [Citation.] On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required.’ [Citation.]” [Citation.]” (Castaneda, supra, 41 Cal.4th at p. 1213.)

“The Court of Appeal in [Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269] accurately described the full analytical process in this way ...” (Castaneda, supra, 41 Cal.4th at p. 1214 [citation removed].)

“First, the court must determine the specific measures the plaintiff asserts the defendant should have taken to prevent the harm. This frames the

issue for the court's determination by defining the scope of the duty under consideration.” (Castaneda, supra, 41 Cal.4th at p. 1214.)

Here, Plaintiff implies that Baxter should have implemented security measures to restrict and monitor Bahna's access to the roof. (See FAC, ¶ 68 [“Baxter breached its duty of care by: (a) failing to restrict or monitor Bahna's access to the rooftop despite knowledge of his violent criminal history; (b) failing to implement any security protocols for rooftop access; (c) failing to take any precaution despite the foreseeable presence of demonstrators on the streets adjacent to the Property; (d) permitting an individual with a documented history of violent criminal conduct - including a felony arrest for battery with serious bodily injury-to maintain unrestricted access to all areas of the Property, including the rooftop; and (e) failing to act despite the prior personal injury lawsuit naming both Bahna and Baxter as defendants”].)

“Second, the court must analyze how financially and socially burdensome these proposed measures would be to a landlord, which measures could range from minimally burdensome to significantly burdensome under the facts of the case.” (Castaneda, supra, 41 Cal.4th at p. 1214.)

“Third, the court must identify the nature of the third party conduct that the plaintiff claims could have been prevented had the landlord taken the proposed measures, and assess how foreseeable (on a continuum from a mere possibility to a reasonable probability) it was that this conduct would occur.” (Castaneda, supra, 41 Cal.4th at p. 1214.)

Fourth, “[o]nce the burden and foreseeability have been independently assessed, they can be compared in determining the scope of the duty the court imposes on a given defendant” (Castaneda, supra, 41 Cal.4th at p. 1214.) “The more certain the likelihood of harm, the higher the burden a court will impose on a landlord to prevent it; the less foreseeable the harm, the lower the burden a court will place on a landlord.” [Citation.] ... [O]ther Rowland factors may come into play in a given case, but the balance of burdens and foreseeability is generally primary to the analysis.” (Ibid.)

Courts have found (1) that it is financially and socially burdensome to implement the security measures that Plaintiff implies in the FAC because of the unpredictable nature of criminal activity, (2), therefore, a high degree of foreseeability of the crime is required in order to impose such duty on a

property owner, and (3) such high degree of foreseeability cannot be proven in the absence of prior similar incidents. (See *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 679 (Ann M.), disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512 [“While there may be circumstances where the hiring of security guards [for example] will be required to satisfy a landowner’s duty of care, such action will rarely, if ever, be found to be a ‘minimal burden.’ The monetary costs of security guards is not insignificant. Moreover, the obligation to provide patrols adequate to deter criminal conduct is not well defined. ‘No one really knows why people commit crime, hence no one really knows what is ‘adequate’ deterrence in any given situation.’ [Citation.] Finally, the social costs of imposing a duty on landowners to hire private police forces are also not insignificant. [Citation.] For these reasons, we conclude that a high degree of foreseeability is required in order to find that the scope of a landlord’s duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well established policy in this state” (footnote omitted)].)

Here, the FAC alleges that Bahna’s conduct of shooting at anti-Zionist protestors from the roof of Baxter’s building “was foreseeable for multiple independent reasons: (a) Bahna’s 2011 arrest for felony battery with serious bodily injury (Case No. 24 LAXSA079988-01) put Baxter on notice that Bahna had a documented propensity for violence. The Bahna family-which owns and controls Baxter-is Bahna’s own family and knew of his criminal history. (b) Bahna and Baxter were previously sued together for personal injury in *Lollis v. Bahna and Baxter Properties, LLC* (2013), demonstrating that Bahna’s conduct at or connected to the Property had previously resulted in injury claims. (c) The Property is located directly adjacent to the Israeli Consulate, an area where political demonstrations foreseeably and regularly occur. (d) The Property has a flat, accessible rooftop providing a direct elevated vantage point over the public street and sidewalk below. (e) Bahna is not a random third party but the Property’s own owner and broker, whose access Baxter had both the authority and ability to restrict.” (FAC, ¶ 68; see also *id.* ¶ 2 [alleging that Bahna is a managing agent and member of Baxter, which is a California limited liability company (“LLC”)].)

The Court agrees with Baxter that the above facts meet the highly foreseeable standard because there are no allegations of prior similar incidents (i.e., use of the roof of the building to shoot at anti-Zionist protestors on the street below). Even if it is true that Bahna is a member and manager of the LLC, and an owner and broker of the building, Plaintiff has not cited (and the Court has not found) any law holding that an LLC can be held liable for the tortious, criminal acts of its members solely because the tortfeasor is a member of the LLC, or the tortfeasor is a part-owner or broker of the property the LLC owns.

For those reasons, the Court finds that Plaintiff has failed to allege facts from which the Court can find the imposition of duty on Baxter to be justified.

Therefore, Baxter's demurrer to the sixth cause of action for negligence and seventh cause of action for premises liability is SUSTAINED with leave to amend.

E.

Baxter's

Argument: Eighth Cause of Action for Negligent Supervision/Failure to Control

“‘[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’ [Citation.]” (Alexander v. Community Hospital of Long Beach (2020) 46 Cal.App.5th 238, 264 (Alexander).)

“‘To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act.’ [Citation.]” (Alexander, supra, 46 Cal.App.5th at p. 264.)

Here, the FAC alleges that Baxter knew Bahna had a documented propensity for violence due to a 2011 felony battery with serious bodily injury and a personal injury lawsuit.

However, there are no facts alleging that Baxter knew that Bahna had a propensity to access the roof and commit criminal acts while using the

roof.

Therefore, Baxter's demurrer to the eighth cause of action for negligence supervision/failure to control is SUSTAINED with leave to amend.

F.

Bahna's Argument: First Cause of Action for Assault

"The elements of a cause of action for assault are: (1) the defendant acted with intent to cause harmful or offensive contact, or threatened to touch the plaintiff in a harmful or offensive manner; (2) the plaintiff reasonably believed he was about to be touched in a harmful or offensive manner or it reasonably appeared to the plaintiff that the defendant was about to carry out the threat; (3) the plaintiff did not consent to the defendant's conduct; (4) the plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing the plaintiff's harm." (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 890 (Carlsen).)

Contrary to Bahna's arguments, the FAC has pled facts sufficient to constitute a cause of action for assault by alleging the following. On or about February 4, 2025, Plaintiff was lawfully participating in a peaceful anti-demonstration near Wilshire Boulevard, when Bahna accessed the rooftop of the relevant property, and used it as an elevated vantage point to fire multiple rounds from an airgun at the demonstrators below, including Plaintiff. (FAC, ¶¶ 11, 12.) "Multiple projectiles discharged by Bahna struck the ground at or near Plaintiff's feet." (FAC, ¶ 15.)

"Plaintiff, a military veteran with combat experience, recognized the sounds and visual indicators as gunfire and reasonably believed he was being shot at with a firearm capable of killing him. This belief was objectively reasonable under the circumstances: a person on a rooftop was discharging a weapon directly at the crowd, rounds were impacting the ground nearby, and the shooter was reloading to continue." (FAC, ¶ 30.) "Plaintiff did not consent, expressly or impliedly, to being shot at, targeted, or subjected to projectile fire." (FAC, ¶ 31.) "As a direct and proximate result of Bahna's assault, Plaintiff suffered severe emotional distress, including intense fear for his life, panic, anxiety, and a severe exacerbation of his pre-existing PTSD." (FAC, ¶ 32.)

Therefore, Bahna's demurrer to the first cause of action for assault is OVERRULED.

G.

Bahna's Argument: Second Cause of Action for Battery

"The elements of a cause of action for battery are: (1) the defendant touched the plaintiff, or caused the plaintiff to be touched, with the intent to harm or offend the plaintiff; (2) the plaintiff did not consent to the touching; (3) the plaintiff was harmed or offended by the defendant's conduct; and (4) a reasonable person in the plaintiff's position would have been offended by the touching." (Carlsen, *supra*, 227 Cal.App.4th at p. 890.)

The Court finds that Plaintiff has pled facts sufficient to constitute a cause of action for battery. In addition to the allegations discussed above, the FAC alleges that the projectiles that Bahna fired "placed Plaintiff in direct physical contact with the force of the rounds and the debris and fragments generated by their impact." (FAC, ¶ 36.) To the extent Bahna is contending that the allegation is uncertain regarding whether Plaintiff means he was struck by debris and fragments, Bahna can seek more details through discovery. Indeed, demurrers for uncertainty are disfavored and will only be sustained where the pleading is so bad that the defendant cannot reasonably respond. (*Khoury v. Maly's of Calif. Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the battery allegation is not so uncertain that Bahna cannot respond.

Therefore, Bahna's demurrer to the second cause of action for battery is OVERRULED.

H.

Bahna's Argument: Third Cause of Action for IIED

"The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff

suffered extreme or severe emotional distress.” (Berry v. Frazier (2023)
90 Cal.App.5th 1258, 1273.)

Here, Bahna argues that the FAC
has failed to allege extreme and outrageous conduct. Bahna also argues that
Plaintiff has failed to plead in his IIED claim conduct that is independent of
the assault and battery claims.

The Court disagrees. Based on
the allegations discussed above and contrary to Bahna’s demurrer arguments, the
FAC has alleged facts sufficient to satisfy the elements of an IIED claim against
the defendant. In addition, an IIED claim is a different cause of action from
assault and battery, even if all three claims arise from the same incident.

Therefore, Bahna’s demurrer to the third cause of action for IIED is
OVERRULED.

I.

Bahna’s Argument: Fourth Cause of Action for Violation
of the Bane Act

As stated above, “to state a
cause of action under section 52.1 there must first be violence or intimidation
by threat of violence. Second, the violence or threatened violence must be due
to plaintiff’s membership in one of the specified classifications set forth in
Civil Code section 51.7 or a group similarly protected by constitution or
statute from hate crimes.’ [Citation.]” (Gabrielle, supra, 10
Cal.App.5th at p. 1290.)

Here, Plaintiff has alleged
facts showing that Bahna was interfering, through threat or intimidation, with
Plaintiff’s Constitutional right to express political, pro-Palestinian views
through peaceful protest, and that the violence was due to Plaintiff’s actual
or perceived membership in a pro-Palestinian group. (San Leandro Teachers
Assn. v. Governing Bd. of San Leandro Unified School Dist. (2009) 46
Cal.4th 822, 845 [“Political speech is “at the core of what the First
Amendment is designed to protect.” [Citation]”].) Plaintiff has also alleged that
the violence or threatened was due to Plaintiff’s perceived association with pro-Palestinian
political views. (FAC, ¶ 58.)

Therefore, Bahna's demurrer to the fourth cause of action for violation of the Bane Act is OVERRULED.

J.

Bahna's Argument: Fifth Cause of Action for Ralph Act

As stated earlier, "[u]nder the Ralph Act, a plaintiff must establish [1] the defendant threatened or committed violent acts against the plaintiff or their property, and [2] a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right." (Gabrielle, supra, 10 Cal.App.5th at p. 1291.)

Here, based on the allegations discussed above, the FAC has alleged facts meeting those elements.

Therefore, Bahna's demurrer to the fifth cause of action for violation of the Ralph Act is OVERRULED.

K.

Bahna's Argument: Sixth Cause of Action for Negligence

Bahna argues that the FAC fails to plead facts sufficient to constitute a cause of action for negligence against him because it has already pleaded intentional conduct. (See Demurrer, p. 18:4-9 ["The FAC pleads intentional conduct: Bahna accessed the roof, aimed toward demonstrators, fired multiple rounds, reloaded, and continued firing. [FAC ¶¶ 12–16, 28–33.] The FAC does not plead a distinct negligent act or omission separate from the alleged intentional firing; it simply labels the conduct 'negligent' and 'unreasonable.' [FAC ¶¶ 62–64.] Relabeling intentional conduct as negligence without pleading ultimate facts supporting a negligence theory is insufficient".].)

However, Plaintiff is allowed to plead alternate theories of liability. In addition, "[i]t is a basic precept of tort law that each person has a duty to exercise ordinary care and is liable for injuries resulting from a failure to act reasonably under the circumstances—Civil Code section 1714 reflects this default rule." (Hassaine v. Club Demonstration Services, Inc.

(2022) 77 Cal.App.5th 843, 851.) Here, the FAC states a negligence claim by alleging that Bahna shot projectiles into a crowd that included Plaintiff. A fact finder could find that such conduct was a failure to act reasonably under the circumstances, even if they find that it was not intentional towards Plaintiff.

Therefore, Bahna's demurrer to the sixth cause of action for negligence is OVERRULED.

Motion to Strike

Defendants move to strike the following allegations in the FAC:

(1) allegations concerning criminal charges against Bahna; (2) allegations concerning a 2013 civil lawsuit; (3) allegations regarding insurance communications and coverage; (4) allegations regarding the property's value to imply wealth or financial capacity; (5) request for injunctive relief.

The request to strike the allegation regarding the Property's value is GRANTED without leave to amend. (See Motion to Strike, p. 6:10-13 [seeking to strike: "The following portion of ¶3: 'The Property is assessed at a total value of \$4,967,511 as of the 2024 assessment year'"].) That allegation is irrelevant.

The request to strike the insurance allegations is GRANTED IN PART and DENIED IN PART as follows. Evid. Code, § 1155 states: "Evidence that a person was, at the time a harm was suffered by another, insured wholly or partially against loss arising from liability for that harm is inadmissible to prove negligence or other wrongdoing" (emphasis added). Here, the insurance allegations in subparts (c) and (d) Paragraph 5 could be interpreted as an attempt to prove Bahna's/Baxter's negligence or other wrongdoing. Therefore, the request to strike subparts (c) and (d) of Paragraph 5 of the FAC is GRANTED without leave to amend. The other paragraphs at issue cannot be read as seeking to prove negligence or other wrongdoing. Instead, Plaintiff seeks to show agency/alter-ego relationship between Baxter and Bahna, or that Baxter and/or Bahna owned, controlled, and managed the property from which Bahna allegedly fired projectiles. (FAC, ¶¶ 23, 72.) Therefore, the request to strike Paragraphs 23 and 72 is DENIED.

The request to strike all other allegations is DENIED as moot

given the Court's ruling sustaining in part the demurrer.

Order to Show Cause re Improperly Cited Cases

Defendants' Motion to Strike has cited two cases that appear to be improperly cited, one that does not exist or another that does not discuss the position they are arguing. Defendants have cited: "Hinton v. Strahan (1989) 210 Cal.App.3d 1249, 1255," and "County of Los Angeles v. Superior Court (2009) 181 Cal.App.4th 218, 228," in support of their argument: "Evidence Code section 1155 bars the use of insurance to prove negligence or wrongdoing, and California courts routinely strike insurance allegations from pleadings." (Motion to Strike, p. 11:13-16.) However, there is no California case by the name Hinton v. Strahan, and County of Los Angeles v. Superior Court does not discuss Evidence Code section 1155 or insurance at all."

Defendants and their counsel are ordered to show cause on August 21, 2026 at 8:30 a.m. why they should not be held in contempt of court or otherwise sanctioned for including the above-referenced citations in support of their Motion to Strike.

Conclusion

Based on the foregoing, the Demurrer is OVERRULED IN PART and SUSTAINED IN PART as follows.

Defendant Baxter Properties, LLC's demurrer to the fourth cause of action for violation of the Bane Act, fifth cause of action for violation of the Ralph Act, sixth cause of action for negligence, seventh cause of action for premises liability, and eighth cause of action for negligence supervision/failure to control is SUSTAINED with 20 days leave to amend.

The demurrer is otherwise OVERRULED.

The Motion to Strike is GRANTED IN PART and DENIED IN PART as follows.

The request to strike allegations regarding the property's value—specifically, the following portion of ¶13: "The Property is assessed at a total value of \$4,967,511 as of the 2024 assessment year"—is GRANTED without

leave to amend.

The request to strike insurance allegations—specifically, subparts (c) and (d) of Paragraph 5 of the First Amended Complaint—is GRANTED without leave to amend.

The motion is otherwise DENIED without prejudice.

Plaintiff is ordered to file and serve his Second Amended Complaint within 30 days of this ruling.

The Defendants are ordered to show cause on August 21, 2026 as described above.

The Case Management Conference is Continued to August 21, 2026 at 8:30 a.m.

Dated: July 17, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court